

24STCV21264F 24STCV21264F

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-07-20

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Case Number: 24STCV21264F Hearing Date: July 20, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 20, 2026

CASE NUMBER

24STCV21264F

MOTION

Motion for Sanctions

MOVING PARTIES

Plaintiffs Cal26 Property Group, LLC and Robert Gentino

OPPOSING PARTY

None

MOTION

Plaintiffs Cal26

Property Group, LLC and Robert Gentino ("Plaintiffs") seek sanctions against Defendants

Gabriel Pope and Skylar Vincent ("Defendants") under Code of Civil Procedure

section 128.7 based on Defendants' pending motion for judgment on the pleadings. Defendants have not opposed the motion. The Court previously considered this motion

and, in its May 11, 2026 order, continued the matter to this date.

ANALYSIS

Code of Civil Procedure section 128.7

requires an attorney or self-represented litigant to sign all pleadings,

petitions, notices of motions, and other similar papers. (Code Civ. Proc., § 128.7, subd. (a).) By the signature, that person certifies the

"legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law." (Code Civ.

Proc., § 128.7, subd. (b)(2).) If the

Court determines an attorney or self-represented litigant has violated this

requirement, the Court may impose sanctions against the attorney or

self-represented litigant. (Code Civ.

Proc., § 128.7, subd. (c).)

As set forth in the Court's order on the

motion for judgment on the pleadings which is being heard concomitantly with

the instant motion, the Court grants the motion for judgment on the pleadings,

in part. As such, the Court cannot

impose sanctions, because Defendants' motion does not indisputably have no merit. (See, e.g., *Plantations at*

Haywood 1, LLC v. Plantations at Haywood, LLC (2025) 108 Cal.App.5th 803,

816 [motion for sanctions pursuant to Code of Civil procedure section 128.7

against a party who brought an appeal is granted when the appeal "lacks any semblance of merit"].)

Accordingly, this motion for sanctions is denied.

Plaintiffs are to

give notice of the Court's ruling and to file proof of service of same.